

making central to Plaintiff's theory of liability. (Mark Dec. ¶¶ B-E; Lefkowitz Dec. ¶¶ 8-16.)

Thus, the court cannot conclude as a matter of law at this time that Plaintiff's evidence fails to create a triable issue regarding the Moving Defendant's own conduct. Here, it appears that the parties' experts fundamentally disagree regarding whether Plaintiff's escalating symptoms required discontinuation of Plaquenil before structural retinal changes became visible through OCT imaging. (Mark Dec. ¶¶ B-E, 12; Lefkowitz Dec. ¶¶ 6, 8-16.) The experts further disagree regarding whether Dr. Rothlisberger's diagnostic approach was adequate in the presence of cataracts and whether earlier intervention would have altered Plaintiff's outcome. (Mark Dec. 12; Lefkowitz Dec. ¶¶ 10, 14-16.)

These are factual disputes for resolution at trial rather than by summary judgment. The court is not permitted at this stage to weigh the credibility of competing experts or determine which medical interpretation is more persuasive. (*Hansen, supra*, 76 Cal.App.4th at 607.) Accordingly, there are triable issues regarding breach of the standard of care and causation that preclude summary judgment at this time.

Therefore, the Motion is denied and the alternative request for summary adjudication is likewise denied. The court finds that triable issues of material fact exist regarding whether the moving Defendant's monitoring and evaluation of Plaintiff's long term Plaquenil use complied with the applicable standard of care; whether the Moving Defendant's reasonably relied upon OCT and structural retinal testing despite Plaintiff's cataracts and progressive symptoms; whether Plaintiff's symptoms required discontinuation of Plaquenil before 2023; and whether earlier discontinuation or additional retinal testing would have prevented or reduced Plaintiff's alleged vision loss.

10. S-CV-0054299 Gomez, Hector Ortega v. Entrussed

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

As part of the court's review of whether preliminary approval of a settlement is appropriate, the court reviews the release of claims to ensure it is not overbroad and is tied to the operative complaint and the Labor Code section 2699.3 notice to the LWDA. Here, plaintiff did not provide a copy of the Section 2699.3 notice to the LWDA so the court has been unable to review it.

The court on its own motion continues the motion for preliminary approval to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 9, 2026, plaintiff is directed to file and serve on all parties (1) notice of continued hearing and (2) a copy of the Section 3699.3 notice to the LWDA.

11. S-CV-0055273 Kapitrus Servicing v. Ultimate Low Voltage

Judgment creditor is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Assignment Order

Judgment creditor moves for a court order directing judgment debtors Ultimate Low Voltage, Inc. dba Ultimate Low Voltage and Jon Fenton to assign to the judgment creditor all or part of a right of payment due and an order restraining assignment of payments due within the meaning of Code of Civil Procedure sections 708.510 and 708.520. No opposition has been filed.

Judgment creditor filed an application for entry of judgment on a September 13, 2023 Virginia judgment in the current amount of \$80,720.42. The Placer County Clerk entered the sister-state judgment on May 21, 2025. Judgment creditor filed proofs of service on June 9, 2025 purporting to show service of the sister-state judgment. However, there is insufficient evidence of proper service of the sister-state judgment as to judgment debtor Ultimate Low Voltage as no agent for service of process or designated officer of the corporation is listed on the proof of service. Notice of entry of judgment shall be promptly served on judgment debtor in the same manner as provided for service of summons. (Code Civ. Proc., § 1710.30, subd. (a).) "A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: (a) To the person designated as agent for service of process" or to a designated officer of the corporation. (Code Civ. Proc., § 416.10, subds. (a), (b).) The proof of service provides insufficient evidence of effective service of the sister-state judgment.

As to judgment debtor Jon Fenton, the proof of service filed June 9, 2025 shows service by substitution pursuant to Code of Civil Procedure section 415.20(b). However, no declaration of diligence is provided in support of substitute service, as required by Section 415.20(b). It appears this judgment debtor may have been served pursuant to Code of Civil Procedure section 415.20(c), but this subdivision is not included on the June 9, 2025 proof of service.

Moreover, in addition to service of the judgment, the judgment creditor is required to provide notice "in a form prescribed by the Judicial Council and shall inform the judgment debtor that the judgment debtor has 30 days within which to make a motion to vacate the judgment." (Code Civ. Proc., § 1710.30, subd. (a).) There is no evidence in the court's file showing judgment debtors were served with this language. There is no form